

SUPREME COURT OF SRI LANKA

COLOMBAGE v. MINISTRY OF JUSTICE

S. C. APPEAL No. 45/2022

CORAM:

Yasantha Kodagoda, PC, CJ

Eva Wanasundera, J

Vijitha Malalgoda Jayasinghe, J

8th March, 2023

FACTS AND BACKGROUND:

This application was filed by the Petitioner seeking relief under Article 126 of the Constitution, alleging violation of fundamental rights.

ISSUES FOR DETERMINATION:

1. Whether the action of the respondent violated Article 12(1) of the Constitution
2. Whether the respondent acted ultra vires

SUBMISSIONS:

The Petitioner's Counsel argued that the respondent acted without lawful authority. The Respondent's Counsel contended that all actions were within the powers vested.

FINDINGS OF THE COURT:

Having considered the evidence and submissions presented before us, we find that:

The respondent has indeed acted outside the scope of authority granted under law. This Court is of the opinion that relief should be granted to the Petitioner.

ORDER:

For the reasons stated in my judgment, I set aside the order of the respondent and remit the matter back for reconsideration in accordance with law.

J. KODAGODA, CJ

I agree with the above judgment.

J. WANASUNDERA

I agree with the above judgment.

J. JAYASINGHE